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Tukaram
v
State of Maharashtra

In a nation where social attitudes towards rape and other violent crimes against women focus on the victim rather than the perpetrator, very rarely do instances of such crimes galvanize public opinion and drive reform. One such instance was in 2012, when the rape of 'Nirbhaya' in a moving bus on the streets of Delhi prompted widespread protests and amendments to the criminal law. Four decades before Nirbhaya, it was Mathura. To describe the rape of Mathura committed by a couple of men as an outrageous crime is an oversimplification. Rather, the Mathura case involved a colossal failure of public institutions – including not just the police and the lower judiciary, but also the Supreme Court.

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Desaiganj is a town about 130 kilometres southeast of Nagpur, in the state of Maharashtra. Bordering Chhattisgarh, it now lies at the heart of the Naxal belt. It was home to Mathura, an Adivasi teenager. Although her precise age was not known at the time, she was thought to be between fourteen and sixteen.

Mathura was a child of difficult personal circumstances. She was an orphan, and lived with her brother, Gama. Mathura and Gama worked as physical labourers. She often visited Nunshi and Laxman's home for work.